

## 24AVCV00657 24AVCV00657

County: los-angeles

Division: Civil Law and Motion

Department: A14

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Case Number: 24AVCV00657 Hearing Date: August 11, 2026 Dept: A14

SUPERIOR COURT OF THE  
STATE OF CALIFORNIA

COUNTY OF LOS ANGELES  
– NORTH DISTRICT

EDWARD JULIAN III,

Plaintiff,

v.

FCA US, LLC; and DOES 1 through  
10, inclusive,

Defendants.

Case  
Number 24AVCV00657

[TENTATIVE]

STATEMENT OF  
DECISION

Date  
of Hearing: August 11, 2026

Dept. A-14

Judge William H.  
Forman

I.

Background

This is an action arising from Defendant FCA US, LLC's (Defendant's) alleged violations of its statutory obligations under the Song-Beverly Consumer Warranty Act (Song-Beverly Act). Defendant presently moves for judgment on the pleadings.

On May 31, 2024, Plaintiff Edward Julian III (Plaintiff) filed a complaint against Defendant, asserting four causes of action for (1) violation of subdivision (d) of Civil Code section 1793.2, (2) violation of subdivision (b) of Civil Code section 1793.2, (3) violation of subdivision (a)(3) of Civil Code section 1793.2, and (4) breach of the implied warranty of merchantability. Plaintiff asserts these violations arose after he purchased a 2018 Dodge Challenger and entered into a warranty contract with Defendant on January 22, 2020. (Compl., ¶ 7.)

On July 1, 2024, Defendant filed an answer to the complaint.

On August 13, 2025, Plaintiff filed a motion for leave to file a first amended complaint.

On September 16, 2025, the Court denied Plaintiff's leave to amend. Plaintiff submitted to the Court's tentative ruling denying the motion and informed the Court he intended to refile the motion for leave to amend in accordance with the Court's tentative ruling.

On April 7, 2026, Defendant filed the present motion for judgment on the pleadings.

On July 29, 2026, Plaintiff filed his opposition.

On August 4, 2026, Defendant

filed its reply.

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II.

Preliminary

Procedural Issues

Meet and Confer Requirement – Before filing a motion for judgment on the pleadings, the moving party is required to meet and confer at least five days before the date the motion is filed in person, by telephone, or by video conference with the party who filed the pleading subject to the motion for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the motion.

(Code Civ. Proc., § 439 , subd. (a).) The moving party shall file and serve with the motion a declaration stating the means by which the parties met and conferred and that the parties did not reach an agreement to resolve the issues raised, or that the party who filed the pleading failed to respond or otherwise failed to meet and confer in good faith. (Ibid.)

Here, Defense counsel Amanda E. Dobson asserts that she sent electronic correspondence on February 19, 2026 to Plaintiff's counsel attempting to meet and confer regarding the present motion and proposing dates for telephonic conference in early March, but that Plaintiff's counsel did not respond to these efforts. (Dobson Decl., ¶¶ 3, 5, Ex. B.) Plaintiff argues this requirement is not satisfied, as Defense counsel failed to meet and confer by telephone, videoconference, or in person as required by Section 439. (Opp., p. 1:21-26.)

The Court finds this requirement is satisfied. Contrary to Plaintiff's argument, where a party moving for judgment on the pleadings has provided a declaration attesting that the party who filed the pleading failed to respond to a meet and confer effort, the requirement is satisfied. Defense counsel has done so here, and Plaintiff may not argue that the motion was improperly brought by failing to respond to a meet and confer effort.

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III.

Legal

Standard

Standard for Motion for Judgment on the Pleadings – A defendant may move for judgment on the pleadings where “[t]he complaint does not state facts sufficient to constitute a cause of action against that defendant.” (Code Civ. Proc., § 438, subd. (c)(1)(B)(ii).) “A motion for judgment on the pleadings may be made at any time either prior to the trial or at the trial itself. [Citation.]” (Ion Equipment Corp. v. Nelson (1980) 110 Cal.App.3d 868, 877 (disapproved on other grounds).)

“A motion for judgment on the pleadings performs the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed. Presentation of extrinsic evidence is therefore not proper on a motion for judgment on the pleadings.” (Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 999 (citations omitted).) “The standard for ruling on a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer, that is, under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law.” (Bezirdjian v. O'Reilly (2010) 183 Cal.App.4th 316, 321–322 (citing Schabarum v. California Legislature (1998) 60 Cal.App.4th 1205, 1216).) “All properly pleaded, material facts are deemed true, but not contentions, deductions, or conclusions of fact or law.” (Adams v. Bank of America, N.A. (2020) 51 Cal.App.5th 666, 670.)

“If a pleading is defective but amendable, judgment on the pleadings should be granted but with leave to amend.” (Olsen v. Lockheed Aircraft Corp. (1965) 237 Cal.App.2d 737, 742.)

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#### IV.

##### Discussion

##### Application – Defendant

moves for judgment on the pleadings pursuant to California Code of Civil Procedure section 438 on the grounds that the Song-Beverly Act does not apply to the subject vehicle, a used 2018 Dodge Challenger, and Plaintiff's complaint thus fails to state facts sufficient to constitute a cause of action under the Song-Beverly Act. (Notice of Mtn., p. 1:21-26.) This motion is also made pursuant to the California Supreme Court's 2024 ruling in Rodriguez v. FCA US, LLC (2024) 17 Cal.5th 189. (Notice of Mtn., p. 1:27.)

a.

#### Viability of Complaint in Light of Rodriguez

"The Song-Beverly Act is a remedial statute designed to protect consumers who have purchased products covered by an express warranty." (Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 798.) The Song-Beverly Act requires that "[e]very manufacturer of consumer goods sold in this state and for which the manufacturer has made an express warranty shall...[m]aintain in this state sufficient service and repair facilities reasonably close to all areas where its consumer goods are sold to carry out the terms of those warranties or designate and authorize in this state as service and repair facilities independent repair or service facilities reasonably close to all areas where its consumer goods are sold to carry out the terms of the warranties." (Civ. Code, § 1793.2, subd. (a).) "Consumer goods" means any new product that is used, bought, or leased for use primarily for personal, family, or household purposes. (Civ. Code, § 1791, subd. (a).)

At issue here is whether Plaintiff's causes of action fail as a matter of law in light of the Rodriguez decision. In Rodriguez, the plaintiffs brought suit against FCA US, LLC under the Song-Beverly Act to enforce the refund-or-replace provision in Section 1793.2, subdivision (d)(2) following their purchase of a two-year-old used car which had over 55,000 miles on it and was sold with an unexpired manufacturer's new car warranty. (Rodriguez, supra, 17 Cal.5th at 195-96.) The Supreme Court upheld the trial and appellate court's granting of summary judgment in favor of the defendant, and held that "a motor vehicle purchased with an unexpired manufacturer's new car warranty does not qualify as a 'motor vehicle sold with a manufacturer's new car warranty' under section 1793.22, subdivision (e)(2)'s definition of 'new motor vehicle' unless the new car warranty was issued with the sale." (Id at 196.)

Turning to the parties' arguments, Defendant argues that because the vehicle purchased by Plaintiff was not a new motor vehicle at the time of purchase, under Rodriguez, Plaintiff may not maintain his causes of action under the Song-Beverly Act. (Motion, p. 2:15-18.) Defendant notes that Plaintiff failed to allege he purchased a new motor vehicle and that the Complaint, brought in part under Civil Code section 1795.5 governing used motor vehicles, states Plaintiff

purchased the car in 2020 with a balance on the 2018 New Vehicle Limited Warranty applicable to the vehicle. (Motion, p. 4:4-5, 8-14.) Defendant argues that in light of the Rodriguez decision, and because the complaint fails to allege that any new car warranty was issued in connection with the purchase of the used vehicle, that his Song-Beverly claims fail as a matter of law. (Motion, p. 6:16-20.)

In opposition, Plaintiff argues the holding in Rodriguez is limited to the narrow issue of whether Civil Code section 1793.2, subdivision (d)(2) is applicable to used vehicles, but has no bearing on whether a purchaser of a used vehicle may seek remedies under other provisions of the Song-Beverly Act as none of the other statutes under which Plaintiff seek relief contain any limitation of applicability to only “new” vehicles. (Opp., p. 3:26-4:5.) Therefore, Plaintiff argues that the narrow holding of Rodriguez does not bar his causes of action. (Opp., p. 5:6-8.)

On reply, Defendant argues that Plaintiff mischaracterizes the holding in Rodriguez, and that Rodriguez reaffirms a broader principle that manufacturers are not liable under new vehicle provisions of the Song-Beverly Act to used vehicle purchasers unless a new warranty was issued with the sale or the manufacturer substantially participated in the sale. (Reply, p. 1:25-2:5.) Defendant further argues that Plaintiff concedes that purchasers of used vehicles are not entitled to Section 1793.2, subdivision (d)(2)’s enhanced protection for refund or repurchase, but that Plaintiff’s complaint relies on the fact that Defendant failed to refund or repurchase the vehicle, and thus, the complaint generally lacks statutory standing. (Reply, p. 3:15-28.)

Here, Plaintiff is correct in noting that Rodriguez dealt with the meaning of ‘new motor vehicle’ under Section 1793.22, subdivision (e) specifically. However, the holding of Rodriguez extends further than just its implications on whether Plaintiff may maintain his cause of action under Section 1793, subdivision (d)(2). The Song-Beverly Act as a whole only applies to “consumer goods,” which are expressly defined as “any new product or part thereof.” (Civ. Code, § 1791, subd. (a) (emphasis added).) Any argument that the definition of a “new motor vehicle” as established in Rodriguez has no bearing on the definition of a “new product” for the purposes of determining whether a vehicle is defined as a consumer good such that it falls within the Song-Beverly Act is unpersuasive

and cannot be reconciled with *Rodriguez*. Here, Plaintiff's vehicle was purchased used, and thus is not a "new product" or "consumer good" for the purposes of the Song-Beverly Act. Furthermore, the Supreme Court addressed the general statutory framework of the Song-Beverly Act in *Rodriguez*, in which it noted that its interpretation of the meaning of "new vehicle" under Section 1793.22(e) is "bolstered by the framework of the Song-Beverly Act, which distinguishes between new and used products and calibrates manufacturers' and sellers' obligations accordingly." (*Rodriguez*, supra, 17 Cal.5th at 200.)

The Supreme Court analyzed the statutory and Legislative history behind the Song-Beverly Act and set forth the general framework of the Song-Beverly Act and the clear distinction between used and new motor vehicles as follows:

First, in enacting and amending the Song-Beverly Act, the Legislature has maintained a distinction between "new" and "used" products and has specified the warranty protections applicable to each category. The Legislature has shown it knows how to legislate on "used" products (§ 1795.5), and it has employed clear language when it wants to make a "used" product subject to the warranty protections that apply to the product when new [citation]. In defining "new motor vehicle," section 1793.22, subdivision (e)(2) does not mention "used" vehicles; the word "used" nowhere appears. This bolsters the inference that the phrase "other motor vehicle sold with a manufacturer's new car warranty" was not intended to cover any used car with an unexpired new car warranty.

Second, section 1795.5, which governs used goods, makes clear that the same warranty protections that consumers of new products have against manufacturers apply to consumers of used products against distributors or retail sellers "in a sale in which an express warranty is given." In other words, just as with new products, the Act's remedies for failure to repair a used product in conformity with an express warranty have applicability where the express warranty accompanies the sale of the product. For new products, liability extends to the manufacturer; for used products, liability extends to the distributor or retail seller and not to the manufacturer, at least where the manufacturer has not issued a new warranty or played a substantial role in the sale of a used good. [Citation.] In both cases, the Act's protections are premised on an express warranty arising from the product's sale. (See *Rodriguez* [v. FCA US,

LLC (2022) 77 Cal.App.5th 209,] 218 [“[A] hallmark of the Act is that its consumer protections apply against the party who sold the product to the buyer and issued the express warranty.”].) Against this backdrop, it would be anomalous to construe “other motor vehicle sold with a manufacturer's new car warranty” (§ 1793.22, subd. (e)(2)) to include any used car sold by a distributor or retailer with a preexisting, unexpired manufacturer's warranty. If the Legislature had meant to depart from the basic scheme and extend manufacturer liability in this way, again we think it would have spoken more clearly.

(Rodriguez, supra, 17 Cal.5th at 202 (emphasis added).)

Simply put, “Rodriguez held that because the Act protects only the purchasers of ‘new’ motor vehicles, it does not apply to a person who buys a used vehicle, even if the manufacturer's warranty is still in effect for that vehicle.” (Towns v. Hyundai Motor America, 117 Cal. App. 5th 958, 973 (citing Rodriguez, supra, 17 Cal.5th at 195-96).)

Plaintiff's brief reliance on Leber v. DKD of Davis, Inc. (2015) 237 Cal.App.4th 402, 409 in support of the notion that had the Legislature intended for the Song-Beverly Act to apply only to new cars is misplaced. First, Leber was decided by a lower court before the Supreme Court's ruling in Rodriguez, and any contrary interpretation of the Song-Beverly Act and the definition of “new motor vehicle” within is necessarily superseded by Rodriguez. (See Jensen v. BMW of North America, Inc. (1995) 35 Cal.App.4th 112; Rodriguez, supra, 17 Cal.5th at 205 [Jensen disapproved to the extent that it is inconsistent with the Rodriguez opinion].) Second, Leber stated that “[i]f the Legislature had intended the definition of ‘new’ vehicle in section 1793.22, subdivision (e) to apply throughout the Act, it would not have explicitly limited its applicability by providing: ‘For the purposes of subdivision (d) of Section 1793.2 and this section, the following terms have the following meanings ...,’ explicitly limiting the ambit of the various definitions that followed.” (Leber, supra, 237 Cal.App.4th at 409.) However, it so held because the Leber plaintiff was not suing a manufacturer, and the new motor vehicle language does not necessarily apply to a distributor or retailer. (Ibid [“that a used vehicle sold with a manufacturer's warranty qualified as a new vehicle under that statute is inapplicable to this case, which does not involve manufacturer's liability”



(referring to Jensen)].)

Third, and most notably, the Leber

Court also accurately stated that “after defining consumer goods to refer to new goods, and having provided one exception for used assistive devices, the Legislature presumably intended the Act to apply to and only to new products, unless otherwise explicitly so stated. [Citation.] Leber does not persuade us that a used, as-is vehicle qualifies as a new vehicle for purposes of triggering the implied warranties in section 1791.1, part of the Act.” (Id at 407.) Therefore, Leber supports that the Song-Beverly Act applies only to new motor vehicles, the definition of which was narrowed by Rodriguez, unless otherwise expressly stated (e.g., Civil Code section 1795.5).

Here, there is no dispute that

the vehicle purchased by Plaintiff is a used vehicle, and such facts are made clear from the complaint and attached 2018 manufacturer’s warranty. Therefore, the subject vehicle is not a “consumer good” as defined by the Song-Beverly Act, and Plaintiff is not entitled to bring his causes of action for Defendant’s alleged violations under the Song-Beverly Act.

Furthermore, the plaintiff in a Song-Beverly action has the

burden of pleading that the Song-Beverly Act applies. (Park City Services, Inc. v. Ford Motor Co., Inc. (2006) 144 Cal.App.4th 295, 309.) The operative complaint here fails to allege that Defendant was acting as a retailer, had any substantial participation in the sale of the vehicle, or issued a new express warranty along with the purchase of the sale. While Plaintiff argues in opposition that Defendant reaffirmed the warranty by attempting to repair the vehicle, the Court does not find this meets the standard of ‘substantial participation’ or issuance of an express warranty. (See Kiluk v. Mercedes-Benz USA, LLC (2019) 43 Cal.App.5th 334, 340 [“the assumption baked into section 1795.5 is that the manufacturer and the distributor/retailer are distinct entities. Where the manufacturer sells directly to the public, however, it takes on the role of a retailer”].) There is no dispute that Plaintiff may have a remaining balance on the warranty originally issued to the first buyer of the vehicle, and that such a warranty may have been in effect at the time Plaintiff attempted to repair the vehicle. However, Defendant’s compliance with the warranty and failure to breach it does not bring this case within the Song-Beverly Act. To so hold would result in either encouragement for vehicle manufacturers to breach express warranties on any and all used cars to avoid liability

under the Song-Beverly Act or to render ineffectual the holding of Rodriguez and the express language of the Act itself omitting manufacturers from liability for used vehicles under the Song-Beverly Act where the manufacturer was not acting as a retailer and did not issue a new express warranty at the time of the sale.

In light of these circumstances, pursuant to the Song-Beverly Act and the Supreme Court's holding in Rodriguez, the vehicle purchased by Plaintiff is not a new motor vehicle or a consumer good under the Song-Beverly Act, and Plaintiff's causes of action against Defendant as manufacturer thereunder fail as a matter of law.

Accordingly, Defendant's motion for judgment on the pleadings is GRANTED.

b.

Leave to Amend

Plaintiff seeks leave to amend the complaint if the Court is inclined to grant the MJOP. As Plaintiff correctly points out, leave to amend is typically granted:

"Where a demurrer is sustained or a motion for judgment on the pleadings is granted as to the original complaint, denial of leave to amend constitutes an abuse of discretion if the pleading does not show on its face that it is incapable of amendment." (Virginia G. v. ABC Unified School Dist. (1993) 15 Cal.App.4th 1848, 1852; see also Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal. 4th 962, 971; Beckstead v. Superior Court (1971) 21 Cal. App. 3d 780, 782.)

(Opposition, at 5.)

The problem here is that Plaintiff does not seek leave to amend the existing causes of action. Rather he acknowledges that if the Court rules that the current claims are barred under Rodriguez, those claims cannot be cured by amendment. In other words, the existing causes of action do show on their face that they are incapable of amendment. Plaintiff seeks instead to plead new -- not amended -- claims under the Magnuson-Moss Act. (Opposition, at 5-6.)

Defendant argues leave to amend should be denied, as Plaintiff previously sought leave to amend by removing the existing Song-Beverly causes of action and replacing them with claims under the Magnuson-Moss Warranty Act, the California Uniform Commercial Code, and the California Legal Remedies Act, which was denied. (Motion, p. 7:20-25.) Defendant further argues on reply that the renewed request for leave to amend fails to comply with California Rule of Court rule 3.1324, which outlines the specific requirements for seeking leave to amend, and that amendment would be futile, as any CLRA claim would fail because Plaintiff cannot allege that Defendant made a misrepresentation or failed to honor a claim, and any MMWA claim would fail because Plaintiff cannot assert a viable state-law warranty claim against Defendant as manufacturer under Rodriguez. (Reply, p. 6:13-23.) Finally, Defendants note that trial is presently scheduled for September 18, 2026, less than five weeks from the date of hearing, and granting leave to amend would result in prejudice to Defendant because it would require additional discovery, expert disclosures, and trial delay. (Reply, p. 7:1-5.)

Plaintiff's motion for leave to file a first amended complaint, filed on August 13, 2025, was filed in response to the Rodriguez decision. (Notice of Motion for Leave, p. 2:9-14.) The motion sought leave to allege causes of action under the Magnuson-Moss Warranty Act, the California Uniform Commercial Code, and the California Legal Remedies Act, all of which were, unlike the Song-Beverly Act, unaffected by Rodriguez. (Notice of Motion for Leave, p. 2:15-27.) Plaintiff asserted that the proposed amendments to the complaint "would remove Song-Beverly claims that are now untenable." (Motion for Leave, p. 1:20.) Thus, Plaintiff knew of the deficiency of the Complaint ages ago.

On September 16, 2025, the Court denied that motion without prejudice. The minute order states: "Plaintiff's counsel informs the Court that they plan to re-file the Motion for Leave to Amend in accordance with the Court's tentative." The stated grounds for denial in the Court's tentative ruling were that the motion for leave failed to comply with California Rules of Court, Rule 3.1324. Plaintiff had submitted a proposed FAC, but it was not redlined. The August 13, 2025 motion for leave did not state what allegations in the previous pleading are proposed to be deleted or added by page, paragraph, and line number. Furthermore, the declaration in support did not adhere to California Rules of Court, Rule 3.1324(b) nor does the motion attempt to address what this subdivision requires.

Regardless of the merits of the amendments Plaintiff sought, Plaintiff understood what fixes to make. But no fixes followed. In the months after that hearing Plaintiff did nothing. And on January 28, 2026, the Court granted the stipulation of the parties to continue trial in this matter. The Court interlineated on the parties' proposed order "No further continuances shall be granted." And still Plaintiff did not, and has not, filed the promised motion for leave.

The Court denies leave to amend for two independent reasons.

First, this is not a situation of seeking leave to amend to rehabilitate existing claims, but to assert wholly new claims. This is in effect a motion for leave to amend under CCP Section 473. The Court may consider both Plaintiff's lack of diligence in seeking the amendment and the prejudice that would be occasioned by granting leave. (*Magpali v. Farmers Grp., Inc.* (1996) 48 Cal. App.4th 471, 486, as modified on denial of reh'g (Aug. 20, 1996).) Here, Plaintiff has unaccountably delayed eleven months in re-raising the motion for leave issue, and has not even yet filed a motion for leave. We are now just over a month from trial. As Defendant correctly points out, granting leave now would necessitate a continuance of the trial and thus prejudice Defendant. These circumstance alone warrant denying leave:

Nevertheless, our independent review of the record reveals no abuse of discretion in the denial of the request for leave to amend. Magpali's amendment was proposed on the eve of trial, nearly two years after the complaint was originally filed. He did not give an explanation for leaving the Act claim out of the original complaint or bringing the request to amend so late.

(*Magpali*, *supra*, 48 Cal.App.4th at 486.)

The second and independent reason for denying leave is futility. Defendant correctly summarizes the futility of the proposed amendment:

Any CLRA claim would fail for the same reasons as Plaintiff's Song-Beverly claims because Plaintiff cannot allege that FCA made a misrepresentation or failed to honor a warranty issued at the time

of sale [of the used vehicle]. Likewise, any Magnuson-Moss claim requires a viable state-law warranty claim, which Plaintiff cannot assert under Rodriguez.

(Reply, at 6.)

Accordingly, the request for leave to amend is denied.

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V.

Conclusion

Defendant FCA US, LLC's Motion

for Judgment on the Pleadings is GRANTED without leave to amend. Plaintiff's causes of action arising under the Song-Beverly Act are dismissed with prejudice.